Tarun Kumar Mittal vs State Of U.P. And Another on 7 September, 2021

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Author: Vivek Agarwal

Bench: Vivek Agarwal

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HIGH COURT OF JUDICATURE AT ALLAHABAD


A.F.R.

Court No. - 49


Case :- APPLICATION U/S 482 No. - 6319 of 2021


Applicant :- Tarun Kumar Mittal

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Virendra Singh

Counsel for Opposite Party :- G.A.


Hon'ble Vivek Agarwal,J.
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1. Heard Sri Virendra Singh, learned counsel for the applicant and Sri Janardan Prakash, learned AGA for the State.

2. This Application U/S 482 Cr.P.C. has been filed seeking quashing of the entire proceedings of Misc. Case No.326 of 2019 pending in the court of Judicial Magistrate-Ist, Bulandshahar (Sonia Agarwal Vs. Tarun Kumar Mittal) under Section 31 of Domestic Violence Act, Police Station-Kotwali Nagar, District-Bulandshahar.

3. Learned counsel for the applicant submits that the only question raised in this Application is, whether court below was justified in invoking the provisions of Section 31 of the Domestic Violence Act for getting its earlier orders executed vide which, interim maintenance was granted in favour of wife.

4. Sri Virendra Singh, learned counsel for the applicant submits that said provisions of Section 31 can be invoked only to penalize breach of protection order as defined under Section 18 of the Act of 2005 and not to enforce provisions contained in Section 12 of the Domestic Violence Act.

5. Reliance is placed on the judgment of High Court of Kerala at Ernakulam in Criminal Misc. No.1322 of 2009 (Kanaka Raj son of Kunjan Nadar Vs. State of Kerala and another) decided on 24.06.2009 by a Single Judge of the said High Court, wherein, the question which was raised and decided is "whether a Magistrate is competent to direct registration of a case and investigate an offence under Section 31 of Protection of Women from Domestic Violence Act, 2005 in the absence of a protection order or an interim protection order".

6. Reliance is also placed on the judgment of a co-ordinate Bench decided on 10.08.2018 (Vikram Shah Vs. State of U.P. and another) in Application U/S 482 No.23048 of 2018, wherein, similar issue was raised and it is submitted that the co-ordinate Bench has decided that provisions of Section 31 of the Domestic Violence Act will not be applicable for recovery of the amount payable under the orders passed in exercise of jurisdiction under Section 12 and 23 of the Act of 2005.

7. However, perusal of the order cited in case of Vikram Shah (supra) reveals that matter was remitted to the court below to decide the question of maintainability of the proceedings under Section 31 of the Act of 2005 initiated by the opposite party no.2 and only, thereafter, proceed with the complaint case pending before the court below.

8. Recently High Court of Madhya Pradesh, Jabalpur had an occasion to decide similar issue wherein, Division Bench of the High Court in case of Surya Prakash Vs. Smt. Rachna decided in M.C.R.C. No.16718 of 2015, held that non-payment of maintenance allowance is also a breach of protection order and, therefore, provisions of Section 31 of the Act can be invoked. It confirmed its earlier order in case of Sunil @ Sonu Vs. Sarita Chawla (Smt.); 2009 (5) MPHT 319.

9. While answering the issue Hon'ble Division Bench in case of Surya Prakash (supra) formulated first question namely, "(i) whether non-payment of maintenance allowance can be treated to be a breach of 'protection order' or 'interim protection order' ? If it is a breach of said orders, whether Section 31 of the D.V. Act can be invoked ?

10. The aforesaid decision makes a reference to a decision of Allahabad High Court also in case of Manoj Anand Vs. State of U.P. and another (Criminal Revision No.635 of 2011) decided on 10.02.2012 placing reliance on which, learned counsel for the petitioner Surya Prakash had contended that for non-payment of maintenance, the proceedings under Section 31 of the Act cannot be initiated.

11. However, Division Bench of Madhya Pradesh High Court considered the provisions of the 'Domestic Violence Act' and referring to the definition of "domestic violence" as provided under Section 2(g) and other relevant provisions has held that provisions of Section 31 of Domestic Violence Act can be invoked for execution of grant of maintenance order under Section 12 of D.V. Act.

12. Under Section 2(g) term 'domestic violence' has the same meaning as assigned to it in Section 3, which reads as under:-

> 9. "It is advantageous to extract the relevant provisions of the Act, which read as under:-
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> "2. Definitions.- In this Act, unless the context otherwise requires, -
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> *** *** ***
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> (g) "domestic violencee" has the same meaning as assigned to it in Section 3;
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> *** *** *** "3. Definition of domestic violence.- For the purposes of this Act, any act, omission or commission or conduct of the respondent shall constitute domestic violence in case it -
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> (a) harms or injures or endangers the health, safety, life, limb or well-being, whether mental or physical, of the aggrieved person or tends to do so and includes causing physical abuse, sexual abuse, verbal and emotional abuse and economic abuse; or *** *** *** Explanation I.--For the purposes of this section,--
>
> (i) "physical abuse" means any act or conduct which is of such a nature as to cause bodily pain, harm, or danger to life, limb, or health or impair the health or development of the aggrieved person and includes assault, criminal intimidation and criminal force;
>
> (ii) "sexual abuse" includes any conduct of a sexual nature that abuses, humiliates, degrades or otherwise violates the dignity of woman;
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> (iii) "verbal and emotional abuse" includes--
>
> (a) insults, ridicule, humiliation, name calling and insults or ridicule specially with regard to not having a child or a male child; and
>
> (b) repeated threats to cause physical pain to any person in whom the aggrieved person is interested.
>
> (iv) "economic abuse" includes--

(a) deprivation of all or any economic or financial resources to which the aggrieved person is entitled under any law or custom whether payable under an order of a court or otherwise or which the aggrieved person requires out of necessity including, but not limited to, household necessities for the aggrieved person and her children, if any, stridhan, property, jointly or separately owned by the aggrieved person, payment of rental related to the shared household and maintenance;

(b) disposal of household effects, any alienation of assets whether movable or immovable, valuables, shares, securities, bonds and the like or other property in which the aggrieved person has an interest or is entitled to use by virtue of the domestic relationship or which may be reasonably required by the aggrieved person or her children or her stridhan or any other property jointly or separately held by the aggrieved person; and

(c) prohibition or restriction to continued access to resources or facilities which the aggrieved person is entitled to use or enjoy by virtue of the domestic relationship including access to the shared household.

Explanation II.--For the purpose of determining whether any act, omission, commission or conduct of the respondent constitutes "domestic violence" under this section, the overall facts and circumstances of the case shall be taken into consideration." (Emphasis supplied) "18. Protection orders.--The Magistrate may, after giving the aggrieved person and the respondent an opportunity of being heard and on being prima facie satisfied that domestic violence has taken place or is likely to take place, pass a protection order in favour of the aggrieved person and prohibit the respondent from--

(a) committing any act of domestic violence;

(b) aiding or abetting in the commission of acts of domestic violence;

*** *** ***

(g) committing any other act as specified in the protection order." (Emphasis Supplied) "20. Monetary reliefs.-- (1) While disposing of an application under sub-section (1) of Section 12 the Magistrate may direct the respondent to pay monetary relief to meet the expenses incurred and losses suffered by the aggrieved person and any child of the aggrieved person as a result of the domestic violence and such relief may include but is not limited to--

(a) the loss of earnings;

(b) the medical expenses;

(c) the loss caused due to the destruction, damage or removal of any property from the control of the aggrieved person; and

(d) the maintenance for the aggrieved person as well as her children, if any, including an order under or in addition to an order of maintenance under Section 125 of the Code of Criminal Procedure, 1973 (2 of 1974) or any other law for the time being in force.

*** *** ***"

13. For ready reference, Section 31 reads as under:-

"31. Penalty for breach of protection order by

respondent - (1) A breach of protection order, or of an interim protection order, by the respondent shall be an offence under this Act and shall be punishable with imprisonment of either description for a term which may extend to one year, or with fine which may extend to twenty thousand rupees, or with both.

(2) The offence under sub-section (1) shall as far as practicable be tried by the Magistrate who has passed the order, the breach of which has been alleged to have been caused by the accused.

(3) While framing charges under sub-section (1), the Magistrate may also frame charges under Section 498A of the Indian Penal Code (45 of 1860) or any other provision of that Code or the Dowry Prohibition Act, 1961 (28 of 1961), as the case may be, if the facts disclose the commission of an offence under those provisions."

14. Supreme Court in case of Hiral P. Harsora and others Vs. Kusum Narottamdas Harsora and others); (2016) 10 SCC 165, in para nos.16 and 18 held as under:-

> "16. A cursory reading of the Statement of Objects and Reasons makes it clear that the phenomenon of domestic violence against women is widely prevalent and needs redressal. Whereas criminal law does offer some redressal, civil law does not address this phenomenon in its entirety. The idea therefore is to provide various innovative remedies in favour of women who suffer from domestic violence, against the perpetrators of such violence.
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> 18. What is of great significance is that the 2005 Act is to provide for effective protection of the rights of women who are victims of violence of any kind occurring within the family. The Preamble also makes it clear that the reach of the Act is that violence, whether physical, sexual, verbal, emotional or economic, are all to be redressed by the statute. That the perpetrators and abettors of such violence can, in given situations, be women themselves, is obvious. With this object in mind, let us now examine the provisions of the statute itself."

15. Judgment in case of Surya Prakash (supra) also considered the Seven Judge Bench judgment in case of Abhiram Singh Vs. C.D. Commachen (dead) by Lrs. and others; (2017) 2 SCC 629, wherein majority judgment is that in case of conflict between giving a literal interpretation or a purposive interpretation to a statute or a provision in a statute is perennial. It can be settled only if the draftsman gives a long-wined explanation in drafting the law, but this would result in an awkward draft that might well turn out to be unintelligible. The Supreme Court held as under:-

> 36. The conflict between giving a literal interpretation or a purposive interpretation to a statute or a provision in a statute is perennial. It can be settled only if the draftsman gives a long-winded explanation in drafting the law but this would result in an awkward draft that might well turn out to be unintelligible. The interpreter has, therefore, to consider not only the text of the law but the context in which the law was enacted and the social context in which the law should be interpreted. This was articulated rather felicitously by Lord Bingham of Cornhill in R.(Quintavalle) Vs. Secy. of State for Health19 when it was said: (AC p. 695 C-H, paras 8-9) "8. The basic task of the court is to ascertain and give effect to the true meaning of what Parliament has said in the enactment to be construed. But that is not to say that attention should be confined and a literal interpretation given to the particular provisions which give rise to difficulty. Such an approach not only encourages immense prolixity in drafting, since the draftsman will feel obliged to provide expressly for every contingency which may possibly arise. It may also (under the banner of loyalty to the will of Parliament) lead to the frustration of that will, because undue concentration on the minutiae of the enactment may lead the court to neglect the purpose which Parliament intended to achieve when it enacted the statute. Every statute other than a pure consolidating statute is, after all, enacted to make some change, or address some problem, or remove some blemish, or effect some improvement in the national life. The court's task, within the permissible bounds of interpretation, is to give effect to Parliament's purpose. So the controversial provisions should be read in the context of the statute as a whole, and the statute as a whole should be read in the historical context of the situation which led to its enactment".
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> 9. There is, I think, no inconsistency between the rule that statutory language retains the meaning it had when Parliament used it and the rule that a statute is always speaking. If Parliament, however long ago, passed an Act applicable to dogs, it could not properly be interpreted to apply to cats; but it could properly be held to apply to animals which were not regarded as dogs when the Act was passed but are so regarded now. The meaning of "cruel and unusual punishments" has not changed over the years since 1689, but many punishments which were not then thought to fall within that category would now be held to do so. The courts have frequently had to grapple with the question whether a modern invention or activity falls within old statutory language: see Bennion, Statutory Interpretation, 4th Edn. (2002) Part XVIII, Section 288. A revealing example is found in Grant v. Southwestern and Country Properties Ltd., 1975 Ch 185 : (1974) 3 WLR 221, where Walton, J. had to decide whether a tape recording fell within the expression "document" in the Rules of

the Supreme Court. Pointing out (at p. 190) that the furnishing of information had been treated as one of the main functions of a document, the Judge concluded that the tape recording was a document."

44. Another facet of purposive interpretation of a statute is that of social context adjudication. This has been the subject matter of consideration and encouragement by the Constitution Bench of this Court in Union of India Vs. Raghuvir Singh (Dead) by Lrs. (1989) 2 SCC 754. In that decision, this Court noted with approval the view propounded by Justice Holmes, Julius Stone and Dean Roscoe Pound to the effect that law must not remain static but move ahead with the times keeping in mind the social context. It was said:

"10. But like all principles evolved by man for the regulation of the social order, the doctrine of binding precedent is circumscribed in its governance by perceptible limitations, limitations arising by reference to the need for readjustment in a changing society, a readjustment of legal norms demanded by a changed social context. This need for adapting the law to new urges in society brings home the truth of the Holmesian aphorism that "the life of the law has not been logic it has been experience" (Oliver Wendell Holmes), and again when he declared in another study (Oliver Wendell Holmes, Common Carriers and the Common Law) (1943) 9 Curr LT 387 at p. 388), that "the law is forever adopting new principles from life at one end", and "sloughing off" old ones at the other. Explaining the conceptual import of what Holmes had said, Julius Stone elaborated that it is by the introduction of new extra-legal propositions emerging from experience to serve as premises, or by experience-guided choice between competing legal propositions, rather than by the operation of logic upon existing legal propositions, that the growth of law tends to be determined (Julius Stone, Legal Systems & Lawyers Reasoning, pp. 58-59)."

(emphasis supplied) A little later in the decision it was said: (SCC pp. 767-68, para 13) "13. Not infrequently, in the nature of things there is a gravity-heavy inclination to follow the groove set by precedential law. Yet a sensitive judicial conscience often persuades the mind to search for a different set of norms more responsive to the changed social context. The dilemma before the Judge poses the task of finding a new equilibrium prompted not seldom by the desire to reconcile opposing mobilities. The competing goals, according to Dean Roscoe Pound, invest the Judge with the responsibility "of proving to mankind that the law was something fixed and settled, whose authority was beyond question, while at the same time enabling it to make constant readjustments and occasional radical changes under the pressure of infinite and variable human desires" (Roscoe Pound, An Introduction to the Philosophy of Law, p. 19. The reconciliation suggested by Lord Reid in The Judge as Law Maker (1972) The Journal of Public Teachers of Law 22 at pp. 25-26, lies in keeping both objectives in view, 'that the law shall be certain, and that it shall be just and shall move with the times'."

16. Judgment of Madhya Pradesh High Court in case of Surya Prakash Vs. Smt. Rachna (supra), in paragraph Nos.14, 15 and 16 reads as under:-

14. Section 18 of the Act empowers the Magistrate to pass a protection order in affirmative in favour of an aggrieved person when he is satisfied that domestic violence has taken place or is likely to take place. The Magistrate is also competent to prohibit the respondent from committing any act of domestic violence or such other acts as mentioned in the said section. The domestic violence has been defined in Section 3 of the Act which includes causing physical abuse, sexual abuse, verbal and emotional abuse and economic abuse. The "economic abuse" has been explained in clause (iv) of Explanation I of Section 3 of the Act wherein deprivation of all or any economic or financial resources to which the aggrieved person is entitled under any law or custom whether payable under an order of a court or otherwise or which the aggrieved person requires out of necessity is an expression of "domestic violence".

15. The amount of maintenance awarded by the Magistrate is an amount which an aggrieved person requires to meet necessities of life and for survival. Such amount is not limited to household necessities but also includes payment of rental related to the shared household. It includes maintenance as well. Therefore, the order passed by the Magistrate granting maintenance is an affirmative order of protection in relation to domestic violence as defined in Section 3 of the Act. For such violation, the penalty is provided in Section 31 of the Act.

16. Section 20 of the Act deals with grant of monetary relief to meet the expenses incurred and the losses suffered by aggrieved person and any child of the aggrieved person as a result of domestic violence. Such provision enlarges the scope of domestic violence as defined in Section 3 of the Act. In terms of Section 3 of the Act, the "economic abuse" includes deprivation of all or any economic or financial resources, payment of rental related to shared household and maintenance. Whereas Section 20 includes a loss of earnings, medical expenses, loss caused due to destruction, damage or removal of any property as also the maintenance. The grant of monetary relief under Section 20 does not exclude the amount of maintenance which can be awarded in terms of Section 18 of the Act as part of affirmative order in respect of the domestic violence as defined in Section 3 of the Act. Therefore, we find that non-payment of maintenance is a breach of protection order; therefore, Section 31 of the Act can be invoked. Therefore, in respect of first question, it is held that non-payment of maintenance allowance is a breach of protection order for which proceedings under Section 31 of the Act can be invoked.

17. Thus, in the light of the above discussion so also in view of a Division Bench decision of Madhya Pradesh High Court passed after relying on the judgments of Supreme Court in regard to purposive interpretation and keeping in mind the aim and object of a special statute namely, Protection of Women From Domestic Violence Act, 2005, I am of the opinion that provisions of Section 31 can be invoked to penalize even breach of orders passed under Section 12 of the said Act. Therefore, Application deserves to fail and is dismissed.

Order Date :- 7.9.2021 Ashutosh